

290, 304.) However, where a cause of action seeks to void a transfer of property and thus, “void [a non-party’s] interest in the property, [plaintiff] should have joined the deed beneficiary as a party. (Code Civ. Proc., § 379.) Transferees are necessary parties ‘in an action to declare a transfer void as fraudulent.’” (*Ibid.*)

Plaintiff argues that Shahab and Machine Learning are indispensable parties. To the extent Plaintiff is seeking to set aside the deed of trust recorded on the Walnut Creek property, that document was recorded and shows Shehab as the beneficiary on the deed of trust. (Comp. ex. C; prayer for relief 1.) There is no showing that Shahab has an ownership interest in the deed of trust and thus, it is not clear why Shahab would be a necessary party if the Court sets aside or voids the deed of trust.

As to Machine Learning, Plaintiff seeks to set aside the conveyance to Machine Learning. (Comp. and FAC prayer for relief 2.) It is alleged that Defendants added Machine Learning as a member of Silverman, along with BOTH Shehab and Shahab. (Comp. ¶19; FAC ¶26.) The 2025 statement of information for Machine Learning shows Shehab and Shahab as officers in the company. (Lin dec. ex. D.) The Court finds that Machine Learning is necessary parties as to the request to set aside the conveyance as to Machine Learning. It is not clear that the members or members of a company must be named, as that is not normally done.

There is, however, another problem with adding Shabah as a defendant. It appears that both sides believe that Shehab and Shahab are the same person, but in an abundance of caution Plaintiff wants to add Shahab as a second person. Plaintiff argues that the incorporation documents for Machine Learning show two individuals, however, it is just as likely that they show one individual with two spellings of his name. Plaintiff has not provided any other evidence, such as discovery or deposition responses, addressing whether there are one or two individuals. The Court’s concern here is that Plaintiff is seeking permission to add a new party, which Plaintiff and his lawyer do not believe is actually a real person. At this time, the Court is not convinced that Plaintiff and his lawyer have a reasonable belief that Shehab and Shahab are two different individuals. As to Shabah, the request for leave to amend is denied without prejudice.

Defendants argue that this motion should be denied based upon delay and because they will be prejudiced with added costs of preparation and increased discovery. There is significant delay here as Machine Learning could have been added to the original complaint. Still, the cases cited by Defendants on this issue involve leave to amend under Code of Civil Procedure section 473(b), which is not the standard applied here. Further, there is no showing of prejudice here.

Therefore, the Court **grants** Plaintiff’s motion to add Machine Learning as a defendant, and **denies** the motion to add Shahab Admin as a separate defendant. The allegations regarding Machine Learning in the proposed SAC may be included when adding Machine Learning as a defendant.

15. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

HEARING ON SUMMARY MOTION DEPT 16 NOTE: MSJ PAPERWORK TO BE FILED ON 12/1

FILED BY:

TENTATIVE RULING:

The hearing on the motion for summary adjudication shall be re-set to allow the Court to first consider the motions to seal. The new summary adjudication hearing date shall be April 22, 2026. No appearance is required on March 25, 2026.

Pursuant to California Rules of Court, Rule 2.551, when a party seeks to utilize information they do not view as privileged, but which the other side has designated as confidential, the party seeking to utilize the material, simultaneously with providing sealed envelopes to the Court, and publicly filing redacted copies, also files a Notice of Lodging which identifies the documents lodged, and typically indicates, as detailed in California Rules of Court, Rule 2.551, that all such records would be placed in the public court record unless the designating party files a timely motion or application to seal the records.

Here, defendant and the party moving for summary adjudication, CL La Fiesta Square CA LP (formerly known as SCC La Fiesta Square LP), substantially complied with that procedure (in the future, the caption on the Notice of Lodging should clearly indicate which documents are contained in the envelope— e.g., “John Doe Declaration in Support of Motion, Exhibit 3, unredacted”).

In response, plaintiff has filed a motion to seal the subject records. Accordingly, there is a motion to seal scheduled for April 15, 2026 with respect to the information being relied upon for the present summary adjudication motion.

Plaintiff separately filed another motion to seal records associated with plaintiffs’ opposition papers. A hearing on that motion is currently set for August 19, 2026.

However, this case is scheduled for a jury trial on June 8, 2026.

On the Court’s own motion, **the August 19, 2026 motion to seal hearing is advanced to April 15, 2026** (the hearing date for the original motion to seal). Any opposition to both motions to seal shall be due by April 2, 2026, and any reply on April 8th. No appearance is required on March 25, 2026.

16. 9:00 AM CASE NUMBER: C24-02203

CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY

HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT

FILED BY: ZAIN JEEWANJEE INSURANCE AGENCY

TENTATIVE RULING:

This hearing is **vacated**. The Court sustained Defendant United States Fire Insurance Company’s Demurrer to the Second Amended Complaint and Motion to Strike Plaintiff’s Second Amended Complaint. See orders filed January 16, 2026. The Court is aware that Plaintiff is seeking relief from the Court’s January 16, 2026 order. A hearing for Plaintiff’s Motion for Relief is scheduled for August 19, 2026. No appearance is required on March 25, 2026.